

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2018-2716

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF ROCKY MARTELLARO, LICENSE NO. LPC 4785,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Rocky Martellaro ("Respondent"), as follows:

1. Respondent was licensed to practice as a professional counselor ("LPC") in the State of Colorado on October 5, 2007, having been issued license number LPC 4785, and is currently so licensed.
2. The Board has jurisdiction over Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
3. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the complaint in case number 2018-2716 without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2018-2716. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. On or about December 2017, Respondent engaged in an inappropriate relationship with a former client on social media.
5. By virtue of the admissions in paragraph 4 above, Respondent admits and the Board finds that Respondent violated section 12-43-222(1)(g) and (k), C.R.S., and the American Counseling Association ("ACA") Code of Ethics A.6.b and H.6.c, which state:

12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article 43 violates this article if he or she:

(g)(l) Has acted or failed to act in a manner that does not meet the generally accepted standards of the professional discipline under which the person practices. Generally accepted standards may include, at the board's discretion, the standards of practice generally recognized by state and national associations of practitioners in the field of the person's professional discipline;

(k) Has failed to terminate a relationship with a client when it was reasonably clear that the client was not benefitting from the relationship and is not likely to gain such benefit in the future.

ACA Code of Ethics.

A.6.b. Extending Counseling Boundaries. Counselors consider the risks and benefits of extending current counseling relationships beyond conventional parameters. Examples include attending a client's formal ceremony (e.g., a wedding/commitment ceremony or graduation), purchasing a service or product provided by a client (excepting unrestricted bartering), and visiting a client's ill family member in the hospital. In extending these boundaries, counselors take appropriate professional precautions such as informed consent, consultation, supervision, and documentation to ensure that judgment is not impaired and no harm occurs.

H.6.c. Client Virtual Presence. Counselors respect the privacy of their clients' presence on social media unless given consent to view such information.

6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Board believes is necessary to protect the public health, safety, and welfare.

ADMONISHMENT

7. On the basis of the findings set forth in paragraphs 4 and 5, the Board hereby admonishes Respondent for violations of section 12-43-222(1)(g) and (k), C.R.S., and ACA Code of Ethics A.6.b and H.6.c. This Order is effective as a Letter of Admonition, set forth by section 12-43-224(3)(d), C.R.S. As part of the admonishment, Respondent agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses in the areas of boundaries and ethics. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

TERMS AND CONDITIONS

9. Respondent will strictly observe the prohibitions set forth in section 12-43-222, C.R.S., and will ensure that he does not engage in any activities that are prohibited and that he practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Board.

11. In the event Respondent relocates at any time prior to completing the terms of this Order, Respondent shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to section 12-43-224, C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of section 12-43-222, C.R.S., and shall have the

same force and effect as an order entered after a formal disciplinary hearing pursuant to section 12-43-224, C.R.S.

16. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

18. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

RESPONDENT



ROCKY MARTELLARO
LPC 4785

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 19th day of September,
2018.